

25NNCV04236 25NNCV04236

County: los-angeles

Division: Civil Law and Motion

Department: V

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Case Number: 25NNCV04236 Hearing Date: August 10, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

HEIDI TRIPP, an individual; ZEKE

ALTON POIRO, an individual,

Plaintiffs,

vs.

NBC UNIVERSAL TELEVISION STUDIO

DIGITAL DEVELOPMENT, LLC, a corporation; NBC UNIVERAL MEDIA, LLC, a corporation, and JOHN DOE, an individual; and DOES 1 to 100, inclusive,

Defendants.

Case

No.:

25NNCV04236

Hearing

Date:

August
10, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION FOR LEAVE TO FILE A FIRST AMENDED COMPLAINT

MOVING PARTIES:

Plaintiffs Heidi Tripp and
Zeke Alton Piro

RESPONDING PARTY: Defendant NBCUniversal Media, LLC

The Court

considered the moving papers and opposition filed in connection with the
instant motion.

BACKGROUND

On June 18, 2025,
Plaintiffs Heidi Tripp ("Plaintiff") and Zeke Alton Piro (collectively,
"Plaintiffs") filed this action against Defendants NBC Universal Television
Studio Digital Development, LLC, NBCUniversal Media, LLC ("Defendant"), and John
Doe (collectively, "Defendants"), alleging causes of action for (1) negligence
– motor vehicle, (2) general negligence, (3) vicarious liability, negligence,
(4) negligence – negligent hiring, supervision and retention, (5) premises
liability, and (6) loss of consortium. Plaintiff alleges she fell out of a golf
cart on Defendants' property, driven by one of Defendant's workers.

On October 22, 2025, the
Court stayed the action in its entirety, and the case was removed to federal
court.

On February 13, 2026,
the United States District Court for the Central District of California (the
"District Court") remanded this action to the Superior Court for the State of
California for the County of Los Angeles.

On July 17, 2026,
Plaintiffs filed the instant motion for leave to file a first amended
complaint.

On July 28, 2026,
Defendant filed an opposition.

On August 4, 2026, Plaintiffs filed a reply.

LEGAL STANDARD

“The court may, in furtherance of
justice, and on any terms as may be proper, allow a party to amend any pleading
or proceeding by adding or striking out the name of any party, or by correcting
a mistake in the name of a party, or a mistake in any other respect; and may,
upon like terms, enlarge the time for answer or demurrer. The court may
likewise, in its discretion, after notice to the adverse party, allow, upon any
terms as may be just, an amendment to any pleading or proceeding in other
particulars; and may upon like terms allow an answer to be made after the time
limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).)

“Any judge, at any time before or
after commencement of trial, in the furtherance of justice, and upon such terms
as may be proper, may allow the amendment of any pleading or pretrial
conference order.” (Code Civ. Proc., § 576.)

DISCUSSION

Plaintiffs move for an order
granting leave to file a First Amended Complaint, adding Carlos Patzi (“Patzi”)
as a named individual defendant, replacing the John Doe defendant.

Plaintiffs make this motion on the
grounds that, after filing the operative Complaint, Plaintiffs discovered
Patzi’s identity. Plaintiffs did not know the identity of the individual
driving the golf cart when filing the original complaint. (Sarani Decl., ¶ 6.)
Plaintiffs discovered that Patzi was the golf cart driver when Plaintiffs
received Defendant’s Rule 26 Initial Disclosures. (Sarani Decl., ¶ 7, Exh. A.) When
Plaintiffs sought to amend their complaint in federal court, the District Court

granted Plaintiffs' motion but remanded this action because the joinder of Patzi destroyed complete diversity. (Sanari Decl., ¶¶ 8-9, Exh. B.) Plaintiffs now seek to substitute Patzi in his individual capacity for Defendant John Doe, and do not seek to make substantive changes to the causes of action. (Sanari Decl., ¶ 10, Exh. C.) Plaintiffs contend amendment is necessary for the pleadings to accurately identify all parties whose conduct gives rise to Plaintiffs' claims and, absent amendment, the Complaint will remain incomplete without the identity of the person whose acts caused the injuries at issue. (Sanari Decl., ¶ 12.) Plaintiffs explain that they did not pursue amendment earlier because they attempted to resolve the issue without a motion by stipulation with Defendant, but Defendant's counsel declined to stipulate. (Sanari Decl., ¶ 14.)

In opposition, Defendant argues Plaintiffs do not demonstrate that leave to amend is necessary or supported by good cause and that Plaintiffs have known Patzi's identity since September 2025 without timely pursuing amendment. Defendant argues amendment is unnecessary because Plaintiffs can obtain complete relief without naming Patzi, as Plaintiffs pursue relief from Defendant pursuant to respondeat superior. Finally, Defendant argues the District Court's order does not compel the Court to grant leave to amend because the District Court's order was analyzed under federal law, not California law which requires good cause and necessity.

The Court finds that Plaintiffs sufficiently demonstrate that amendment is necessary to supplement the original Complaint's John Doe placeholder to include Patzi's identity. Code of Civil Procedure section 474 provides that once the true name of a defendant designated by a fictitious name is discovered, "the pleadings or proceeding must be amended accordingly." Further, Defendant has known about Plaintiffs' attempts to amend since September 24, 2025, when Plaintiffs' counsel advised Defendant that Plaintiffs intended to amend and requested stipulation. (Sanari Decl., ¶ 14.) Plaintiffs demonstrate good cause and timely pursuit of amendment as they attempted to solve this issue without a court order only weeks after learning Patzi's identity, but Defendant refused to stipulate on multiple occasions. (Sanari Decl., ¶¶ 14-15.) Notably, this motion is made before a trial date in this action is set and there is no indication that significant formal discovery has taken place, which demonstrates that Defendant would suffer little prejudice if the motion were granted.

Accordingly, the Court grants

Plaintiffs' motion for leave to file a first amended complaint.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiffs Heidi Tripp and Zeke Alton Pairo's motion for leave to file a first amended complaint.

Plaintiff is ordered to file a first amended complaint within ten (10) days of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 10, 2026

Sarah
J. Heidel

Judge
of the Superior Court